

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 1 of 50

2018 CA 000543

UNITED STATES DISTRICT COURT

PAM CHILDERS
CLERK & COMPTROLLER
FILED

for the

2025 JUN 13 A 10:52

Northern District of Florida

ESCAMBIA COUNTY, FL

Pensacola Division

DEEPGULF, INC.

Case No. 3:18-cv-1466-MCR-MJF

TOKE OIL AND GAS, INC.

Plaintiffs

v.

MARC M. MOSZKOWSKI

Defendant

**DEFENDANT'S RESPONSE AND MEMORANDUM IN OPPOSITION TO
PLAINTIFFS' MOTION TO COMPEL DEFENDANT TO PRODUCE
INITIAL DISCLOSURES, APPEAR PERSONALLY AT DEPOSITION
AND TO APPEAR PERSONALLY AT MEDIATION**

The Defendant opposes the Plaintiff's Motion to Compel on the grounds
that:

1/16

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 2 of 50

- A. The Attorney for the Plaintiffs did not comply with the requirements of District Court Local Rule 7.1 (B);
- B. The documents requested by the Plaintiffs from the Defendant are either already in the hands of the Plaintiffs, or were established by the Plaintiffs and were repeatedly demanded from them by the Defendant, although his demands were consistently ignored by the Plaintiffs;
- C. The state of financial destitution into which the Plaintiffs have reduced the Defendant does not allow him to travel, and he has no visa to enter the United States since he was forced out of the country by the Plaintiffs negligence to, or conspiracy not to, renew his visa;
- D. More urgent issues exist, particularly with regard to (1) the non-existence of one of the Plaintiffs; (2) the jurisdiction of a U.S. Court in a case involving a non-existent foreign company with no activity in the United States against a foreign Defendant residing overseas; (3) the 5 year Statute of Limitations which clearly applies; (4) a conflict of interest for the Attorney for the Plaintiffs, and (5) the still unfulfilled obligation for the extant Plaintiff to provide legal support for the still unrepresented Defendant as per company by-laws.

Details are provided below, in paragraphs numbered as above.

2/16

Additionally, It appears to the Defendant, Marc Moszkowski, that the Motion filed by the Plaintiffs is intended to put unbearable procedural pressure on him, as a substitute for the absolute lack of evidence in the Plaintiffs' complaint, which is based on fabrication instead of facts and logic, the accusations being either imaginary or unsubstantiated or being related to events that happened and were fully reported to the Plaintiffs more than five years before the complaint was filed and therefore are clearly covered by the Statute of Limitations.

A. Regarding the requirements of Rule 7.1 (B) in Plaintiffs' Motion to Compel

The Defendant reads in Rule 7.1 (B) of the District Court Local Rules that:

"Before filing a motion raising an issue, an attorney for the moving party must attempt in good faith to resolve the issue through a meaningful conference with an attorney for the adverse party. The adverse party's attorney must participate in the conference in good faith. The conference may be conducted in person, by telephone, in writing, or electronically, but an oral conference is encouraged. An

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 4 of 50

email or other writing sent at or near the time of filing the motion is not a meaningful conference."

However, in the opinion of the Defendant, instead of seeking a meaningful conference in an attempt to resolve the issue, the Attorney for the Plaintiffs flatly stated in an email his demands and a thinly veiled threat to file the motion if the Defendant did not comply. The email was sent only two working days before the Motion to Compel was filed.

The email from the Attorney for the Plaintiffs read as follows (emphasis added by the Defendant):

"I am preparing to file a Motion to Compel to require you to do three things: (1) provide more complete initial disclosures with regards to the requirement that you disclose "a copy or description of, by category and location, of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and that the disclosing party may use to support its claims or defenses, unless solely for impeachment"; (2) appear personally for a deposition in the district where the court is located; and (3) appear personally at the court ordered mediation.

4/16

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 5 of 50

Please take this email as my attempt to confer with you on these issues. If you are willing to comply with any of the three items mentioned above, let me know as soon as you can, so we might avoid the filing of part or all of the Motion."

Far from an attempt in good faith to resolve the issue through a meaningful conference, the Defendant sees in the Attorney's email nothing but an arrogant ultimatum. He however replied to the email the very same day.

B. Regarding Plaintiffs' Motion to Compel Defendant to produce initial disclosures

The Defendant reads in Title V, Rule 26, of the Federal Rules of Civil Procedure, that he must provide to the other parties "*a copy—or a description by category and location— of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses*".

However, the Defendant reasserts that:

5/16

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 6 of 50

1. Documents which are already in the hands of the Plaintiffs, since they were either sent to the Plaintiffs by the Defendant or were sent by the Plaintiffs to the Defendant: all the documents which the Defendant intends to use in support of his claims or defenses are already in the hands of the Plaintiffs, since they consist in part in the correspondence exchanged with the extant Plaintiff since at least 2007, the other part being documents which the Plaintiffs have established but have failed or refused to make available to the Defendant, as described in paragraph 2 below. Some copies of the correspondence were even sent to the Defendant by the Plaintiffs as part of the discovery, which proves, if need be, that they are in the hands of the Plaintiffs, although these documents were incomprehensibly titled by the Plaintiffs as *"Documents in Defendant's possession, custody, or control that it may use to support its claims"*¹. See **Exhibit A** attached to this memorandum: *"Defendant's Comments on Plaintiff's Rule 26(A)(1) Initial Disclosures"*.

¹ Likewise, the Plaintiffs' computation of damages was titled *"Computation of damages claimed by Defendant"*. Despite the Defendant's remarks about the apparently absurd titles, the Plaintiffs have not furnished any explanation yet.

2. Documents which are in the hands of the Plaintiffs but are not available to the Defendant, although they were repeatedly demanded by the Defendant: more importantly, the most significant documents which the Defendant intends to use in his claims and defenses consist in the extensive accounting records and other documents which are in the hands of the Plaintiffs, but not in his, and which the Defendant has demanded since at least 2016, but to no avail yet. The Defendant has requested from the Plaintiffs the production of 64 items of documentation, but to this day has received no response from the Plaintiffs. See said request for the production of 64 items of documentation in **Exhibit B** attached to this memorandum.

Although the Defendant has reserved the right in his Initial Disclosures to use other documents, he does not think he may use documents other than those already in the hands of the Plaintiffs, since they were specifically addressed and sent to the Plaintiff over the last decade, or were established by the Plaintiffs.

C. Regarding the Defendant's personal appearance in Northwest Florida

The Defendant resides overseas, but not by his own choice, since he was forced out of the United States by the negligence on the part of the Plaintiffs to provide him with a U.S. visa, or perhaps even by their design not to. The Plaintiffs, however, in a display of utter bad faith, have accused him of having "*absconded*", despite the fact that he was forced to leave U.S. soil because of their actions, more than a year before the Plaintiffs filed this lawsuit. The Defendant describes below the reasons for his views regarding the current impossibility of his personal appearance in Northwest Florida. He has already disclosed extensively those reasons to the Attorney for the Plaintiffs:

1. The Defendant is in a state of utter financial destitution as a consequence of his treatment at the hands of the Plaintiffs during the past several years:

- a) For the past five and three-quarter years the Plaintiffs have not paid any salary to the Defendant, who is a Director and the President of the extant Plaintiff company, including during such periods when he returned a sizeable revenue to the company;

- b) However, the Plaintiffs have caused the Defendant to have all his personal professional revenue ascribed to themselves;
- c) Nearly 20 years after having initially arrived in the U.S. in 1998, the Defendant was forced to leave the U.S. abruptly in February 2017 with just one bag of personal items, as a consequence of the extant Plaintiff's negligence to, or conspiracy not to, renew his U.S. visa;
- d) As will be explained in detail in the next paragraphs, the Defendant does not have the wherewithal to travel away from his place of residence in France, which, for lack of resources, he has never left in the past 18 months;
- e) Because of his economic circumstances, the Defendant lives in absolute solitude and seclusion except for the person who brings him provisions once a month, and he has never been in a motor vehicle since he arrived more than a year and a half ago. At any rate he does not own a vehicle;
- f) For lack of resources and for more than 18 months, the Defendant, who is in his 65th year, has not been in a village or in a town, or in a store, or visiting friends, or seen a dentist or a

physician, despite three painful broken teeth and a severe double hernia, all left untreated;

g) The Defendant does not have any alternative to his current residence;

h) The Defendant's residence, the only one he owns, is in an isolated place 12 miles by a mountain road from the closest grocery store. His provisions are brought to him by a delivery person once every month;

i) The Defendant's income is of the order of \$500 a month at purchasing power parity, which is understandably barely enough to procure basic food, electricity, internet presence for the company and telephone connectivity, and pay the grocery delivery person. He had to discontinue all insurance coverage. His bank account, with a balance below \$500 at all times, is likely to be seized soon by the French Government, since his insufficient income did not allow him to pay his accrued local taxes, which were due on December 15;

j) Since a lack of sufficient resources as a consequence of the Plaintiff's deeds over the past several years have made the

10/16

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 11 of 50

Defendant in fact a prisoner in his own house, it would be indeed quite impossible for him to travel to Northwest Florida, which is located 5,000 miles away on another continent. If a solution to the next 2 paragraphs could be found the Defendant would indeed endeavor to take the opportunity to come to Pensacola to publicly face his accusers. If not, the Defendant believes that electronic communication can be extended. It has worked quite efficiently since and before this lawsuit was filed.

2. The foreign Defendant has no visa to enter the United States, since the extant Plaintiff, who is his employer, neglected to, or conspired not to, provide one. The Defendant is not allowed by U.S. authorities to enter the United States for purposes other than tourism or limited business, which evidently does not apply to this Court case. The Defendant will not risk ten years at least of deportation for wrongfully entering the United States under false pretenses.
3. However, extant Plaintiff's company By-laws stipulate expressly in their Article XI that the corporation shall hold harmless and indemnify the Defendant, as a Director or Officer of the corporation, against expenses including attorney's fees and costs of investigation, and

11/16

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 12 of 50

that all expenses shall be promptly advanced or reimbursed by the Corporation. The Plaintiffs have not acknowledged the Defendant's numerous requests regarding the provisions of Article XI of the By-laws.

In view of the reality of his financial destitution, it would be ironic in other circumstances to read that the Defendant is however accused absurdly of having stolen millions from the Plaintiffs, without a shred of evidence or any explanation given by the Plaintiffs whatsoever about the manner in which the millions would have been transferred between countries, exchanged for other currencies, and then spent. The Directors who brought suit on behalf of the Plaintiffs have been intimately aware since 2013 of the Defendant's dire financial situation, for which the Defendant maintains his accusers bear a heavy responsibility.

D. Legal issues which in the Defendant's opinion are urgent and must be addressed in priority

The Plaintiffs never addressed constructively the several urgent issues which the Defendant believes must precede any further action, among them:

12/16

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 13 of 50

1. The more than probable lack of legal existence for one of the two Plaintiffs;
2. The jurisdiction of the United States Court in a case brought by an inexistent foreign Plaintiff with exclusively overseas operations suing in U.S. Court a foreign national residing overseas;
3. The Statute of Limitations which have been broadly exceeded, since the events to which the Plaintiffs' accusations of theft relate happened more than 5 years before their complaint was filed, while the Chairman of the Board of extant Plaintiff, who initiated the lawsuit, was clearly informed of said events more than 5 years before the complaint was filed ²;
4. The conflict of interest for the Plaintiffs' Attorney, who, in a case brought by the existing company against a Shareholder and Director thereof, arbitrarily represents in fact two of the Directors against a

² To wit: the amounts which the Plaintiffs accuse the Defendant of having stolen from the extant Plaintiff are exactly equal, to the cent, to the amounts which the Defendant reported to the Plaintiff more than 5 years before the complaint was filed. Plaintiff could not have obtained these exact figures from anyone but the Defendant and in addition the reports were among the documents sent by the Plaintiff to the Defendant during discovery, which shows that the Plaintiffs were and are in possession of said detailed reports.

third one. The Defendant believes that although it would have been probably understandable from a legal standpoint for two Directors, as Shareholders, to sue a third Director in a Court of Law according to well defined procedures, their suing in the name of a company which is owned nearly by half by the Defendant, who is the largest shareholder, a Director and the President, cannot but create a definite conflict of interest, since the Defendant is also as much a Plaintiff in this case as the two Directors who caused the lawsuit, and the extant Plaintiff is required by its By-laws to procure legal representation and defense for the Defendant;

5. The obligation for the Plaintiffs, as per the By-laws of the extant company, to provide legal representation for the Defendant, who is a Director and an Officer of the company. The Plaintiffs have so far ignored the Defendant's several requests, while they expend on this absurd lawsuit the funds they owe the Defendant for salaries unpaid since 2013. Also, the Defendant has demanded to be held harmless regarding the expenditure of legal costs, since he owns nearly half the company, but his demands have remained ignored by the Plaintiffs.

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 15 of 50

The Defendant has sought support from more than twenty attorneys in Florida, but hasn't been able to retain any, since the few who responded demanded an hourly fee equal to almost as much as his monthly income, with a retainer amounting to between 5 and 10 years of personal income. As a consequence, the Defendant still has no counsel to help him conduct his case in a professional manner, and, in particular, assist him, wherever applicable, in filing the legitimate motions to dismiss the Plaintiffs' absurd accusations.

For the reasons expounded above, the Defendant, Marc Moszkowski, respectfully requests that the Court deny Plaintiff's Motion to Compel.

Respectfully submitted to the Court on December 30th, 2018, by

Marc M. Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Phone: +1 (850) 316 8462

Le Verdos, 83300 Châteaudouble, France

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.

15/16

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1 (F)

I certify that this document contains 2,647 words, not including this word-count statement, the case style, the signature block and the certificate of service, and therefore is within the 8,000 word limit.

M. Moszkowski

CERTIFICATE OF SERVICE

I hereby certify that, on this Sunday, 30th day of December, 2018, I have posted a copy of this document via the Court's E-filing system, 13 days after I was notified of the Motion to Compel.

M. Moszkowski

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 17 of 50

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3: 18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.



DEFENDANT'S COMMENTS ON
PLAINTIFF'S RULE 26(a)(1) INITIAL DISCLOSURES

For the sake of authenticity and business prudence, the Defendant feels compelled to comment hereafter on some of the utterly unreasonable statements made by the Attorney for the Plaintiffs in his Initial Disclosures, which the Defendant received by mail on October 25th, 2018. Some of the statements made by the Plaintiffs are clearly untruthful, while others have the potential to further destroy the future of the company, DeepGulf, Inc., which has been already significantly battered by the reckless and absurd actions of the initiators of this legal action.

1/19

Plaintiffs' statement:

COMES NOW the Plaintiff, Deepgulf, Inc. and Toke Oil and Gas, S.A., by and through its undersigned counsel, pursuant to Rule 26(a)(1), Fed. R. Civ. P., and submits its initial disclosures:

Defendant's comments: the Defendant observes again (a) unacceptable spelling errors on the part of the counsel for the Plaintiffs throughout the document, (b) the wrong Magistrate Judge initials appended again to the case number despite the 09/19/2018 Order (24) issued by the Chief Judge, and (c) several serious errors in the body of this document, the kind of which the Plaintiffs have referred to in the past as "*Scrivener's errors*", but which the Defendant deems to be either disrespectful of the solemnity of a lawsuit, or an indication of the carelessness or even recklessness of the Attorney for the Plaintiffs and of this frivolous case, or at least an indication of a lack of elementary respect for the Defendant.

Plaintiffs' statement:

I. Individual likely to have discoverable information Plaintiffs may use to support its claims

1. Rustin Howard,
 - a. (850) 377 1856
 - b. 431 East Zaragoza St., Pensacola, FL 32502

2/19

c. Chairman of the Board, DeepGulf, Inc.

2. Marc Moszkowski,

a. Defendant (current address or phone number unknown)

Defendant's comments: the Defendant is at a loss to understand Plaintiffs' statement that his "*current address or phone number [are] unknown*", since (a) the Defendant has clearly disclosed both his address and phone number in all his correspondence, (b) he has acknowledged receiving mail from the Plaintiffs, and (c) he responded to Plaintiffs' attorney's phone call. The Defendant does not know whether or not such a scandalous and mendacious statement is a procedural antic on the part of the Plaintiffs.

Plaintiffs' statement:

3. Bill Lott,

- a. (251)583-3150 or (251)433-1621
- b. wblottjr@gmail.com
- c. 26588 Rolling Ridge Road, Robertsedale, Al 36656
- d. Participated in many DeepGulf management and board meetings
- e. Member of Board of Directors
- f. Close friend of Defendant

Defendant's comments: the Defendant notes here the statement made by the Plaintiffs that Bill Lott is a member of the Board of Directors. The Defendant hereby demands from the Plaintiffs a confirmation that Mr. Lott is in effect still a Director of the company, since the Defendant was under the impression that Mr. Howard had caused Mr. Lott to leave the Board of Directors, in order for Mr. Howard to place his close friend Thomas Johnson in the Board seat vacated by Mr. Lott, thus switching the majority of the Board to his own personal advantage.

Plaintiffs' statement:

4. Rodney Lewis,
 - a. (041) 266-1346 or (029) 979-1009 (Australia)
 - b. rodlew@ozemail.com.au
 - c. 2 Lucinda Place, Mona Vale NSW, NSW 2103, Australia
 - d. DeepGulf international legal counsel
 - e. Personal knowledge of DeepGulf and Defendants activities in East Timor, Australia, Indonesia
 - f. In possession of paper and digital documents
5. Arthur Moszkowski,
 - a. +33662785335 (France) or (850) 293-8757 when in the US
 - b. snowtur@hotmail.fr
 - c. Chalet Le Belvedere, Le Croy, 73350 Champagny-en-Vanoise, France
 - d. Adult son of Defendant

- e. Received money from Defendant and money for the benefit of Defendant, possible co-conspirator

Defendant's comments: the Defendant is at a loss to grasp how his son could have possibly avoided for 33 years to ever receive any money from his father, or occasionally for the benefit of his father, and how such an unreasonable statement made by the Plaintiffs could appear in the very paragraph which quite nauseatingly accuses him of being a "*possible co-conspirator*", an accusation that the Defendant notes is again devoid of even a shred of evidence, as all other accusations in the Plaintiffs' complaint. For the record, and as a revealing example of his son's character, the Defendant vigorously reminds the Plaintiffs that his son, for nearly three weeks, was the only individual to help the Defendant, at the risk of his life, in the salvage of a survey ship that was stranded, with a large crew on board, on a dangerous coral reef beaten by a ten foot southeast monsoon surf on the south shores of East Timor. Arthur Moszkowski received no financial compensation whatsoever for his dangerous, strenuous, and repeated efforts, while DeepGulf, Inc.'s Chairman of the Board Rus Howard was enjoying a comfortable salary for staying home, and idle, in Pensacola.

Plaintiffs' statement:

6. Vincente Ximenes,
 - a. 011 67077250374 (East Timor)
 - b. vicente_ximenes@yahoo.com.au
 - c. Last known Address: Hotel Dili, Suite 1, 56 rua dos Direitos Humanos, Dili, Timor Leste.
 - d. Founder, former owner Toke Oil and Gas SA,
 - e. DeepGulf representative in East Timor and Indonesia
 - f. Personal knowledge of DeepGulf and Defendants activities in East Timor, Australia, Indonesia
 - g. In possession of paper and digital documents

Defendant's comments: Mr. Ximenes, whose first name is misspelt, is here rightfully described as the "*founder, former owner of Toke Oil and Gas SA.*", which strongly invalidates the Plaintiffs' absurd claim that the Defendant stole from DeepGulf, Inc. and for himself Mr. Ximenes' salaries. Mr. Ximenes was also a Director and an active manager of Toke Oil and Gas S.A..

Plaintiffs' statement:

7. Gino Favaro,
 - a. unknown
 - b. ginofavaro.57@gmail.com
 - c. Hotel Dili, Suite 1, 56 rua dos Direitos Humanos, Dili, Timor Leste.
 - d. Founder, former owner Toke Oil and Gas SA, former Director Toke Oil and Gas SA

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 23 of 50

- e. Personal knowledge of DeepGulf and Defendants activities in East Timor

Defendant's comments: Mr. Favaro is here rightfully described as the "*founder, former owner of Toke Oil and Gas SA. , former Director Toke Oil and Gas SA*", which strongly invalidates the Plaintiffs' absurd claim that the Defendant stole from DeepGulf, Inc. and for himself Mr. Favaro's salaries. Mr. Favaro was also an active manager of Toke Oil and Gas S.A..

Plaintiffs' statement:

8. Alfredo Pires,
- a. Phone Unknown
 - b. Secretary of State for Natural Resources in Timor-Leste
 - c. DeepGulf provided services to East Timor at the behest of Mr. Pires
 - d. Pires has personal knowledge about DeepGulf projects and contracts in East Timor as well as Defendant's activities in East Timor.

Defendant's comments: His Excellency, Mr. Alfredo Pires, has been the Minister of Petroleum and Mineral Resources of the Democratic Republic of Timor-Leste in the last two governments, and he is currently awaiting confirmation as Minister of Petroleum and Minerals in the new Cabinet.

7/19

Referring to Mr. Pires by his surname only should be avoided, for reasons of diplomatic protocol. Mr. Pires has certainly some knowledge about Toke Oil and Gas S.A.'s projects, but probably not much awareness of DeepGulf, Inc. No services were provided by DeepGulf, Inc. to East Timor at the behest of Mr. Pires.

Additionally, the Defendant emphasizes that he continues to pursue complex business in East Timor, where the relationship with the above named high ranking Cabinet Member has much improved lately. It would be further destructive to the company to involve said high ranking Cabinet Member in the internal DeepGulf feud. The Defendant observes that the responsibility for involving Mr. Pires would be entirely the Plaintiffs', but he stresses that doing so would be not only outright useless, since the Plaintiffs' claims are imaginary and frivolous, but also seriously detrimental to the future of the company, the activities of which have already been utterly damaged by the Plaintiffs' reckless and uneducated actions.

Plaintiffs' statement:

9. Francisco Monteiro,
 - a. Address-Phone Unknown
 - b. President, CEO Timor Gap, Conducts oil and gas business on behalf of the Timor-Leste Government.
 - c. Has personal knowledge about DeepGulf projects and contracts in East Timor as well as Defendant's activities in East Timor.

Defendant's comments: Mr. Monteiro has certainly some knowledge about Toke Oil and Gas S.A.'s business, but probably not much awareness of DeepGulf, Inc.

Additionally, the Defendant emphasizes that he continues to pursue complex business in East Timor, where the relationship with the above named high ranking official has much improved lately. It would be further destructive to the company to involve said high ranking official in the internal DeepGulf feud. The Defendant observes that the responsibility for involving Mr. Monteiro would be entirely the Plaintiffs', but he stresses that doing so would be not only outright useless, since the Plaintiffs' claims are imaginary and frivolous, but also seriously detrimental to the future of the company, the activities of which have already been utterly damaged by the Plaintiffs' reckless and uneducated actions.

There is also the delicate matter of the past attempts by the above named high ranking Timorese official to obtain for himself illegitimate pecuniary favors from the Timorese company's Directors, which attempts the Defendant vigorously dismissed in 2010. The dismissal led to the deterioration of the heretofore excellent relationship the company in Timor had until then enjoyed. Should the gentleman be involved, the issue, which the Defendant has reported elsewhere on several occasions, would obviously have to be addressed in detail, together with the then position on the matter of DeepGulf, Inc.'s Chairman of the Board, Rus Howard.

Plaintiffs' statement:

10. I.J. Tark,
- a. 011 82-10-2088-0694 or 011 82-51-200-0101 (Korea)
 - b. 497 Shinpyeong-dong, Saha-gu, Busan, Korea
 - c. Former President NK,
 - d. Has knowledge of DG projects conducted in Timor, and attempted to help Defendant raise capital in Korea.

Defendant's comments: Mr. Tark attempted to help the Defendant raise capital for the benefit of DeepGulf, Inc. through a potential South Korean subsidiary.

The beneficiary of such potential capital must be clearly named in any mention of such attempt to raise capital. The attempt failed because of the continued inaction and probable incompetence of DeepGulf, Inc.'s Chairman of the Board Rus Howard, who was the acting Chief Financial Officer.

Plaintiffs' statement:

11. Bryan Lastrapes,
 - a. (832) 312-5555 or 713.343.6431
 - b. 333 Clay Street, Suite 3750, Houston, TX 77002
 - c. VP Moelis, Investment Bank
 - d. Has knowledge of representations made by defendant while fundraising.

Defendant's comments: Mr. Lastrapes is a Managing Director (not a VP) of Moelis & Company. No funds were ever raised from Moelis & Company or from Mr. Lastrapes. All representations made to Mr. Lastrapes by the Defendant were (a) made in good faith, (b) were correct, to the best of the Defendant's understanding, and (c) were witnessed in person by DeepGulf, Inc.'s Chairman of the Board Rus Howard, who approved them, had reviewed each and every presentation to Moelis & Company beforehand and, in addition,

was copied of any correspondence with Mr. Lastrapes.

Plaintiffs' statement:

12. Aaron Rosen,
 - a. (585) 330-4009
 - b. 1641 East Avenue, Rochester, NY 14610
 - c. DeepGulf Shareholder, Knowledge or representation made to him by DeepGulf while fundraising
13. Thomas Johnson,
 - a. (850) 712-9095
 - b. 3520 Hopestill Rd., Pensacola, FL 32503
 - c. DeepGulf Shareholder, Knowledge or representation made to him by DeepGulf while fundraising
 - d. New member of, and currently serves on DG Board

Defendant's comments: Since Bill Lott is described above by the Plaintiffs as a "*close friend of Defendant*", Mr. Johnson must be described in this paragraph as a close friend of Plaintiff DeepGulf, Inc.'s Chairman of the Board Rus Howard.

Plaintiffs' statement:

14. Thomas McMillan,
 - a. (251) 867-5413
 - b. P. O. Box 809, Brewton, AL 36427
 - c. Former member DeepGulf Board of Directors
15. Edith Johnson,
 - a. (850) 380-3343
 - b. 3520 Hopestill Rd., Pensacola, FL 32503
 - c. DeepGulf Shareholder, Knowledge or representation made to her by DeepGulf while fundraising

Defendant's comments: Since Bill Lott is described above by the Plaintiffs as a "*close friend of Defendant*", Mrs. Johnson must be described in this paragraph as a close friend of Plaintiff DeepGulf, Inc.'s Chairman of the Board Rus Howard.

Plaintiffs' statement:

II. Documents in Defendant's possession, custody, or control that it may use to support its claims

See attached documents.

Defendant's comments: the Defendant is at a loss to understand the rationale for the Plaintiffs' Attorney to send by air mail to the Defendant documents in Plaintiffs' possession which he describes in this paragraph as being in Defendant's possession, custody, or control, and which he seemingly describes as the documents allowed by the Plaintiffs for the Defendant to use to support his claims.

The Defendant reads in Rule 26 (a)(1)(A)(ii) that "*a party must, without awaiting a discovery request, provide to the other parties: a copy—or a description by category and location—of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses*".

The Defendant believes that paragraph II of the Plaintiffs' Initial Disclosures is wrongly and erroneously titled, although the error is consistent with a pattern of repeated mistakes and outright fabrications that appears to be customary on the part of the Plaintiffs.

Plaintiffs' statement:

III. Computation of damages claimed by Defendant

Defendant's comments: the Defendant is a loss to understand the rationale for the Plaintiffs' Attorney to compute the damages claimed by the Plaintiffs in a paragraph titled "*Computation of damages claimed by Defendant*".

The Defendant reads in Rule 26 (a)(1)(A)(iii) that " *a party must, without awaiting a discovery request, provide to the other parties: a computation of each category of damages claimed by the disclosing party*".

The Defendant believes that paragraph III of the Plaintiffs' Initial Disclosures is wrongly and erroneously titled, although the error is consistent with a pattern of repeated mistakes and outright fabrications that appears to be customary on the part of the Plaintiffs.

Plaintiffs' statement:

Damages for Plaintiffs claims for conversion and civil theft in Count III and V are based upon \$345,000 that Defendant stole and / or converted to his own use. In addition, Section 772.11 provides treble damages and attorneys fees for civil theft claims.

Damages for Plaintiffs claims for conversion and civil theft in Count IV and VI are based upon \$959,764.22 that Defendant stole and / or converted to his

own use. In addition, Section 772.11 provides treble damages and attorneys fees for civil theft claims.

Damage for Counts VII are unknown at this time and Plaintiffs will update the disclosure when those damages are determined.

Defendant's comments: the Plaintiffs' utterly absurd and fabricated accusations are unsupported by even a shred of evidence.

IV. Applicable insurance agreements

Not applicable.



BRADEN K. BALL, JR.
Florida Bar No. 89000
LITVAK BEASLEY WILSON & BALL, LLP
226 East Government Street
Pensacola, Florida 32502
Telephone: (850) 432-9818
Facsimile: (850) 432-9830
Attorneys for Plaintiffs
Primary E-mail: braden@lawpensacola.com
Secondary E-mail: mandrews@lawpensacola.com

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 33 of 50

Plaintiffs' statement:

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 15th day of October, 2018 a copy of the foregoing has been furnished to the Defendant, Marc M. Moszkowski, m.moszkowski@deepgulf.net, Le Verdos, 83300 Châteaudouble, France, via Priority Mail International.


BRADEN K. BALL, JR.

Defendant's comments: the Defendant observes that although the Plaintiffs have declared mendaciously that the Defendant's address was unknown to them, they had in effect good knowledge of where to address their Initial Disclosures; furthermore, the Defendant cannot fail to observe that the grammar, and in particular the syntax, of the above Certificate of Service, suggest carelessness on the part of the Plaintiffs, which he thinks is characteristic of the Plaintiffs and is certainly not to be tolerated from a professional Attorney at Law admitted to the Florida Bar and practicing in United States District Court.

17/19

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 34 of 50



Marc M. Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Phone: +1 (850) 316 8462

Le Verdos, 83300 Châteaudouble,
France

18/19

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 35 of 50

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have, on this Monday, 29th day of October, 2018, before 6:00 AM, emailed a copy of this document to the Attorney for the Plaintiffs, Braden K. Ball, Jr., one working day after I received his own Initial Disclosures.

M. Moszkowski

19/19

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 36 of 50

IN THE UNITED STATES COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs'

v.

CASE NO. 3: 18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.



MARC MOSZKOWSKI'S FIRST REQUEST FOR PRODUCTION OF
DOCUMENTS

Marc Moszkowski, Pro-Se, pursuant to Federal Rules of Civil Procedure, requests DeepGulf, Inc. and Toke Oil and Gas S.A., if the latter still exists, to produce the documents described more fully below, within the time and in the manner required by the Federal Rules of Civil Procedure, and permit Defendant to examine, review, and inspect electronically copies of all the documents requested which are in DeepGulf, Inc.'s possession, custody, or control, or are in the possession, custody, or control of DeepGulf, Inc.'s agents, employees, servants or representatives and, unless privileged, its attorneys.

1/15

DEFINITIONS

As used herein, the term "document" includes, without limitation, the following items, whether printed or recorded or reproduced by any other mechanical process, or written or produced by hand: contracts; agreements; communications; correspondence; telegrams; telex; memoranda; conversations; summaries, notes, memorandum or records of telephone conversations; summaries or records of personal conversations or interviews; statements of witnesses; diaries; reports; receipts; notebooks' note charts; books; ledgers; lists; summaries or records of meeting of conferences; summaries, studies or reports of investigations or negotiations; technical studies or comments appearing on any document; voice recording tapes; microfilm or microfiche; photographs; data processing cards or disks; video recording tapes; calendars; graphs; charts; computer printouts and other computer generated reports; and includes all drafts of documents and copies of such documents containing marginal notes or variations of any of the foregoing, now in your custody or control and all other writings.

As used herein, the terms "you", or "yours" shall refer to DeepGulf, Inc.

SCOPE OF PRODUCTION

If any documents are withheld under claim of privilege, furnish a list identifying each document for which the privilege is claimed, together with the following information:

1. a brief description of the nature and subject matter;
2. the date;
3. the name and title of the author(s);
4. the name and title of the person(s) to whom the document was addressed;
5. the name and title of the person(s) to whom the document was sent;
6. the number of pages;
7. the paragraph to which the document is otherwise responsive; and
8. the nature of the claimed privilege.

DOCUMENTS TO BE PRODUCED

1. Affidavit establishing, if applicable, that DeepGulf, Inc. is not in possession of the correspondence between Rustin Howard and Marc Moszkowski since 2004 and that all or part of it has been lost by Plaintiff's Rustin Howard and/or his secretaries;
2. All accounting books and records for Plaintiff DeepGulf, Inc. since the founding of the company until this day;

3/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 39 of 50

3. All accounting records relative to Rustin Howard's expenditure of DeepGulf, Inc.'s monies;
4. Detailed report of all monies received by DeepGulf, Inc. from Toke Oil and Gas S.A. and other sources;
5. Detailed report of all monies paid to Rustin Howard, plus incidentals and benefits;
6. Detailed report of all monies paid to Rustin Howard's secretaries and assistants, plus incidentals and benefits;
7. Detailed report of all monies spent on office leases;
8. Evidence, if any, of Marc Moszkowski's authorization for the payments relative to the three points above. Marc Moszkowski is the President, and as such he had the rights powers and authorities reserved for the CEO as per Section 9 of Article VII of company Bylaws, since Marc Moszkowski understands now that according to Mr. Rustin Howard no CEO was designated by the board;
9. Evidence, if any, that Rustin Howard had been authorized by the Board of Directors to act as de-facto Chief Financial Officer;
10. Evidence, if any, that Marc Moszkowski, as the President and (Chief) Executive Officer of DeepGulf, Inc. had access to the company's bank accounts;

4/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 40 of 50

11. Evidence, if any, of any and all banking operations done by Marc Moszkowski on or from DeepGulf, Inc.'s bank accounts;
12. Evidence, if any, that Rustin Howard actually disbursed to the benefit of DeepGulf, Inc. the amount of \$5,000 which was to be his only founding contribution to the company;
13. Evidence, if any, that Marc Moszkowski did not spend his personal funds to support the development of DeepGulf, Inc. between 2005 and 2008;
14. Affidavit that Marc Moszkowski was not the CEO, as claimed by Rustin Howard despite his verbal statements to the contrary;
15. Affidavit regarding who is the Vice President, according to Article VII of company by-laws;
16. Affidavit regarding who was and is the CEO, according to Article VII of company by-laws;
17. Affidavit regarding the validity of the title given lately to Marc Moszkowski by Rustin Howard at the end of 2017 ("*President and the Executive Officer*").
A search on Google could not confirm the existence of such a title in the United States;
18. Affidavit regarding why Article VII, Section 9, of DeepGulf, Inc. By-laws should not apply to Marc Moszkowski. See Article VII, Section 9, *The President: "The President shall have the rights powers and authorities as*

5/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 41 of 50

designated by the Board. If no CEO is designated by the board the President shall have all the rights powers and authorities reserved for the CEO unless otherwise authorized by the board.";

19.Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski stole intellectual property from the company, since Marc Moszkowski is the author of said intellectual property and currently works for the company, albeit without a salary since 2013, and is a Director, and the President;

20.Evidence, if any, to support DeepGulf, Inc.'s claim that the salary received by Marc Moszkowski from third party Toke Oil and Gas S.A. was stolen from DeepGulf, Inc.;

21.Evidence, if any, to support DeepGulf, Inc.'s claim that the salaries received by the other two founders and Directors of Toke Oil and Gas S.A. from third party Toke Oil and Gas S.A. were stolen by Marc Moszkowski from DeepGulf, Inc.;

22.Evidence, if any, to support DeepGulf, Inc.'s claim that the salaries received by the other two founders and Directors of Toke Oil and Gas S.A. from third party Toke Oil and Gas S.A. were actually paid to Marc Moszkowski;

23.Evidence, if any, as to the whereabouts of the monies DeepGulf, Inc. is accusing Marc Moszkowski of having stolen;

6/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 42 of 50

- 24.Evidence, if any, as to the manner in which Marc Moszkowski spent the monies DeepGulf, Inc. is accusing Marc Moszkowski of having stolen;
- 25.Evidence, if any, to support DeepGulf, Inc.'s claim that the salaries paid by Toke Oil and Gas S.A. to its Directors and Officers should not have been paid to said Directors and Officers;
- 26.Evidence, if any, contracts, and documentation, to support DeepGulf, Inc.'s claim that the salaries paid by Toke Oil and Gas S.A. to its Directors and Officers should have been paid instead to DeepGulf, Inc.;
- 27.Evidence, if any, to support Rustin Howard's claim that it was illegal for Director Bill Lott to communicate with Marc Moszkowski or to try to conciliate the dispute between Marc Moszkowski and Rustin Howard;
- 28.Evidence, if any, in support of the legality of the process by which Rustin Howard obtained from some shareholders proxies to change the composition of the Board of Directors to his own advantage and to sue Marc Moszkowski, who did not have access to all the shareholders;
- 29.Evidence, if any, to support Rustin Howard's claim that it was illegal for Marc Moszkowski to write to some of the shareholders in order to keep them informed of Rustin Howard's deeds and accusations;

7/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 43 of 50

30. Evidence, if any, that Rustin Howard was entitled to withhold nearly half the shareholders' contact addresses from Marc Moszkowski, and to consistently ignore Marc Moszkowski's demands for said contact addresses;
31. Statement as to the identity of the persons who retained the Attorney for the Plaintiffs;
32. As the principal owner of the company, its President, and one of its three Directors, the Defendant hereby demands to be provided with a copy of the agreement between DeepGulf, Inc. and Toke Oil and Gas S.A. and the attorney for the DeepGulf, Inc., including about pecuniary arrangements;
33. Explanations as to why DeepGulf, Inc. has still not provided representation to its President and Director Marc Moszkowski despite Article XI of company's bylaws;
34. Evidence, if any, that there is no conflict of interest whatsoever for DeepGulf, Inc.'s Attorney, whose client's principals are DeepGulf, Inc.'s Directors, including the Defendant Director. Such conflict of interest is incompatible with an impartial and just resolution of this case;
35. Evidence, if any, that the Defendant is and will be held harmless by DeepGulf, Inc. with regard to the current legal representation and other legal costs for DeepGulf, Inc.;

8/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 44 of 50

36. Evidence, if any, to support DeepGulf, Inc.'s claim that DeepGulf did not owe Marc Moszkowski a salary despite the terms of his visa which stipulated said salary explicitly;
37. Evidence, if any, that the Court has jurisdiction over Plaintiff Toke Oil and Gas S.A.'s complaint. Plaintiff Toke Oil and Gas S.A., whose identity has finally been confirmed by the Plaintiffs as that of a foreign corporation (although its address is described in the summons as being the private domicile of Plaintiff DeepGulf, Inc.'s Chairman of the Board in Pensacola, Florida), is extinct as far as the Defendant is aware, operated exclusively in a foreign country, but is suing the Defendant, who is a foreign national residing in a foreign country, in a United States Court;
38. Evidence, if any, establishing that Marc Moszkowski should have requested permission from DeepGulf, Inc.'s Board of Directors before accepting compensation from Toke Oil and Gas S.A., or that he should have requested permission from Toke Oil and Gas S.A.'s Board of Directors before accepting compensation from DeepGulf, Inc.;
39. Affidavit regarding which decision the Board of Directors would have reached if permission had been requested for compensation to be paid to Marc Moszkowski by Toke Oil and Gas S.A.;

9/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 45 of 50

40. Evidence, if any, establishing that Rustin Howard was granted permission from DeepGulf, Inc.'s Board of Directors before accepting compensation from DeepGulf, Inc.;
41. Affidavit regarding which decision the Board of Directors would have reached if permission had been requested for compensation to be paid to Rustin Howard by DeepGulf, Inc.;
42. Evidence, if any, of the minutes of meeting of the full Board of Directors, including Director Marc Moszkowski, which resulted in this lawsuit;
43. Evidence, if any, that Marc Moszkowski was requested to assist in due time with sufficient notice and during working hours to said Board of Directors meeting in the usual manner in which communication had been established within the company since at least 2005;
44. Evidence, if any, that Marc Moszkowski was party to and voted in the Board of Directors meeting during which the decision was made to bring suit against him;
45. Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski was ever contracted by Toke Oil and Gas S.A. for consulting activities;
46. Evidence, if any, that Marc Moszkowski should not have received a salary from Toke Oil and Gas S.A. while he was Toke's President Director General, Project Manager, support boat operator, survey ship pilot, cartographer, data

10/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 46 of 50

analyst, senior scientist, senior engineer, website administrator, communication director, ship salvage manager, contract negotiator, head of the legal department, logistics manager, etc., several of the above activities occurring offshore;

47.Evidence, if any, that Rustin Howard never received Toke Oil and Gas S.A. financial documents and reports more than 5 years before this lawsuit was filed, and that he did not acknowledge receiving them;

48.Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski did not disclose the salaries paid by Toke Oil and Gas S.A. to its Directors more than 5 years before this lawsuit was filed;

49.Evidence, if any, existing in the agreements relative to the transfer of stock between Toke Oil and Gas S.A. and DeepGulf, Inc., regarding the availability and production of existing and past company information, reports and records to DeepGulf, Inc.;

50.Copies of all correspondence between DeepGulf, Inc., or its Directors, and Mr. Frank White, a Florida State Representative running at the time for the office of Florida Attorney General who had no authorized business with DeepGulf, Inc.;

51.Evidence, if any, that Mr. Frank White had authorized business with DeepGulf, Inc.,

11/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 47 of 50

52. Copy of all correspondence regarding DeepGulf, Inc.'s business or activities, which has not been copied to Marc Moszkowski, who was and is the company's President and one of its three Directors;
53. Evidence, if any, that Plaintiff DeepGulf, Inc. had no obligation or duty to provide a visa for Marc Moszkowski, whereas five visa applications had been made, all by Rustin Howard, four of which visas having been picked up in Paris, Jakarta, Hong Kong, and Paris again;
54. Evidence, if any, to support DeepGulf, Inc.'s claim that all of Marc Moszkowski's private revenue had to be paid to DeepGulf, Inc., especially as a foreign citizen working in a foreign country for a foreign employer, while DeepGulf, Inc. did not pay him a salary;
55. Evidence, if any, that it was ethical and legal for Rustin Howard to connive with his friend and business associate Dave Rumsey, with the design to substitute a private loan from a third party at an usurious interest rate for a duly owed company salary;
56. Evidence, if any, that it was ethical and legal for Rustin Howard to connive with Dave Rumsey to sue Marc Moszkowski in French Court for the reimbursement of a loan in substitution of a duly owed salary, said loan never having been paid by Dave Rumsey to Marc Moszkowski;

12/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 48 of 50

57. Evidence, if any, to support the fact that while Marc Moszkowski was employed in Singapore and West Africa by a third party company, part of the time offshore, and while he had ascribed to DeepGulf, Inc. all the \$100,000 revenue from his clients, he should not have received any salary whatsoever from DeepGulf, Inc. for discharging the duties that were demanded from him by his clients;

58. Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski "*absconded*" and stole intellectual property, since he left the country only because the company did not provide him with the required visa to stay, and he is still the company's President and one of its three Directors;

59. Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski is using any of company's intellectual property for his personal gain;

60. Evidence, if any, of the continued and uninterrupted existence of Toke Oil and Gas S.A. since 2008, as delivered by the relevant East Timorese governmental authority;

61. Evidence, if any, that Toke Oil and Gas S.A. is a full subsidiary of DeepGulf, Inc. ;

62. If company Toke Oil and Gas S.A. still exists in East Timor as a continued and uninterrupted corporation since 2008, evidence, if any, of a certification

13/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 49 of 50

of the composition of the Board of Directors, as delivered by the relevant East Timorese governmental authority;

63. Evidence, if any, that DeepGulf, Inc. completed the acquisition of Toke Oil and Gas S.A., and that the full payment was paid by DeepGulf, Inc. to Vicente Ximenes for the transfer of his shares to DeepGulf, Inc.;

64. Evidence of the origin of the funds that supported the company's activities between mid-2005 and early 2008, if not from Marc Moszkowski, during the period when Rustin Howard did not raise capital and Marc Moszkowski received no salary, although the company operated, with commercial promotion paid for and daily work done by Marc Moszkowski, who had to support himself and the company and pay for all travel expenses.



Marc M. Moszkowski, PrG Se
Email: m.moszkowski@deepgulf.net
Phone: +1 (850) 316 8462
Le Verdos, 83300 Châteaubleau,
France

14/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 50 of 50

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that, on this Wednesday, 28th day of November, 2018, I have emailed a copy of this document to the Attorney for the Plaintiffs, Braden K. Ball, Jr.

M. Moszkowski

15/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 1 of 50

UNITED STATES DISTRICT COURT

PAM CHILDERS
CLERK & COMPTROLLER
FILED

for the

2025 JUN 13 A 10:52

Northern District of Florida

ESCAMBIA COUNTY, FL

Pensacola Division

DEEPGULF, INC.

Case No. 3:18-cv-1466-MCR-MJF

TOKE OIL AND GAS, INC.

Plaintiffs

v.

MARC M. MOSZKOWSKI

Defendant

**DEFENDANT'S RESPONSE AND MEMORANDUM IN OPPOSITION TO
PLAINTIFFS' MOTION TO COMPEL DEFENDANT TO PRODUCE
INITIAL DISCLOSURES, APPEAR PERSONALLY AT DEPOSITION
AND TO APPEAR PERSONALLY AT MEDIATION**

The Defendant opposes the Plaintiff's Motion to Compel on the grounds
that:

1/16

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 2 of 50

- A. The Attorney for the Plaintiffs did not comply with the requirements of District Court Local Rule 7.1 (B);
- B. The documents requested by the Plaintiffs from the Defendant are either already in the hands of the Plaintiffs, or were established by the Plaintiffs and were repeatedly demanded from them by the Defendant, although his demands were consistently ignored by the Plaintiffs;
- C. The state of financial destitution into which the Plaintiffs have reduced the Defendant does not allow him to travel, and he has no visa to enter the United States since he was forced out of the country by the Plaintiffs negligence to, or conspiracy not to, renew his visa;
- D. More urgent issues exist, particularly with regard to (1) the non-existence of one of the Plaintiffs; (2) the jurisdiction of a U.S. Court in a case involving a non-existent foreign company with no activity in the United States against a foreign Defendant residing overseas; (3) the 5 year Statute of Limitations which clearly applies; (4) a conflict of interest for the Attorney for the Plaintiffs, and (5) the still unfulfilled obligation for the extant Plaintiff to provide legal support for the still unrepresented Defendant as per company by-laws.

Details are provided below, in paragraphs numbered as above.

2/16

Additionally, It appears to the Defendant, Marc Moszkowski, that the Motion filed by the Plaintiffs is intended to put unbearable procedural pressure on him, as a substitute for the absolute lack of evidence in the Plaintiffs' complaint, which is based on fabrication instead of facts and logic, the accusations being either imaginary or unsubstantiated or being related to events that happened and were fully reported to the Plaintiffs more than five years before the complaint was filed and therefore are clearly covered by the Statute of Limitations.

A. Regarding the requirements of Rule 7.1 (B) in Plaintiffs' Motion to Compel

The Defendant reads in Rule 7.1 (B) of the District Court Local Rules that:

"Before filing a motion raising an issue, an attorney for the moving party must attempt in good faith to resolve the issue through a meaningful conference with an attorney for the adverse party. The adverse party's attorney must participate in the conference in good faith. The conference may be conducted in person, by telephone, in writing, or electronically, but an oral conference is encouraged. An

email or other writing sent at or near the time of filing the motion is not a meaningful conference."

However, in the opinion of the Defendant, instead of seeking a meaningful conference in an attempt to resolve the issue, the Attorney for the Plaintiffs flatly stated in an email his demands and a thinly veiled threat to file the motion if the Defendant did not comply. The email was sent only two working days before the Motion to Compel was filed.

The email from the Attorney for the Plaintiffs read as follows (emphasis added by the Defendant):

"I am preparing to file a Motion to Compel to require you to do three things: (1) provide more complete initial disclosures with regards to the requirement that you disclose "a copy or description of, by category and location, of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and that the disclosing party may use to support its claims or defenses, unless solely for impeachment"; (2) appear personally for a deposition in the district where the court is located; and (3) appear personally at the court ordered mediation.

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 5 of 50

Please take this email as my attempt to confer with you on these issues. If you are willing to comply with any of the three items mentioned above, let me know as soon as you can, so we might avoid the filing of part or all of the Motion."

Far from an attempt in good faith to resolve the issue through a meaningful conference, the Defendant sees in the Attorney's email nothing but an arrogant ultimatum. He however replied to the email the very same day.

B. Regarding Plaintiffs' Motion to Compel Defendant to produce initial disclosures

The Defendant reads in Title V, Rule 26, of the Federal Rules of Civil Procedure, that he must provide to the other parties "*a copy—or a description by category and location— of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses*".

However, the Defendant reasserts that:

5/16

1. Documents which are already in the hands of the Plaintiffs, since they were either sent to the Plaintiffs by the Defendant or were sent by the Plaintiffs to the Defendant: all the documents which the Defendant intends to use in support of his claims or defenses are already in the hands of the Plaintiffs, since they consist in part in the correspondence exchanged with the extant Plaintiff since at least 2007, the other part being documents which the Plaintiffs have established but have failed or refused to make available to the Defendant, as described in paragraph 2 below. Some copies of the correspondence were even sent to the Defendant by the Plaintiffs as part of the discovery, which proves, if need be, that they are in the hands of the Plaintiffs, although these documents were incomprehensibly titled by the Plaintiffs as "*Documents in Defendant's possession, custody, or control that it may use to support its claims*"¹. See **Exhibit A** attached to this memorandum: "*Defendant's Comments on Plaintiff's Rule 26(A)(1) Initial Disclosures*".

¹ Likewise, the Plaintiffs' computation of damages was titled "*Computation of damages claimed by Defendant*". Despite the Defendant's remarks about the apparently absurd titles, the Plaintiffs have not furnished any explanation yet.

2. Documents which are in the hands of the Plaintiffs but are not available to the Defendant, although they were repeatedly demanded by the Defendant: more importantly, the most significant documents which the Defendant intends to use in his claims and defenses consist in the extensive accounting records and other documents which are in the hands of the Plaintiffs, but not in his, and which the Defendant has demanded since at least 2016, but to no avail yet. The Defendant has requested from the Plaintiffs the production of 64 items of documentation, but to this day has received no response from the Plaintiffs. See said request for the production of 64 items of documentation in **Exhibit B** attached to this memorandum.

Although the Defendant has reserved the right in his Initial Disclosures to use other documents, he does not think he may use documents other than those already in the hands of the Plaintiffs, since they were specifically addressed and sent to the Plaintiff over the last decade, or were established by the Plaintiffs.

C. Regarding the Defendant's personal appearance in Northwest Florida

The Defendant resides overseas, but not by his own choice, since he was forced out of the United States by the negligence on the part of the Plaintiffs to provide him with a U.S. visa, or perhaps even by their design not to. The Plaintiffs, however, in a display of utter bad faith, have accused him of having "*absconded*", despite the fact that he was forced to leave U.S. soil because of their actions, more than a year before the Plaintiffs filed this lawsuit. The Defendant describes below the reasons for his views regarding the current impossibility of his personal appearance in Northwest Florida. He has already disclosed extensively those reasons to the Attorney for the Plaintiffs:

1. The Defendant is in a state of utter financial destitution as a consequence of his treatment at the hands of the Plaintiffs during the past several years:

- a) For the past five and three-quarter years the Plaintiffs have not paid any salary to the Defendant, who is a Director and the President of the extant Plaintiff company, including during such periods when he returned a sizeable revenue to the company;

- b) However, the Plaintiffs have caused the Defendant to have all his personal professional revenue ascribed to themselves;
- c) Nearly 20 years after having initially arrived in the U.S. in 1998, the Defendant was forced to leave the U.S. abruptly in February 2017 with just one bag of personal items, as a consequence of the extant Plaintiff's negligence to, or conspiracy not to, renew his U.S. visa;
- d) As will be explained in detail in the next paragraphs, the Defendant does not have the wherewithal to travel away from his place of residence in France, which, for lack of resources, he has never left in the past 18 months;
- e) Because of his economic circumstances, the Defendant lives in absolute solitude and seclusion except for the person who brings him provisions once a month, and he has never been in a motor vehicle since he arrived more than a year and a half ago. At any rate he does not own a vehicle;
- f) For lack of resources and for more than 18 months, the Defendant, who is in his 65th year, has not been in a village or in a town, or in a store, or visiting friends, or seen a dentist or a

physician, despite three painful broken teeth and a severe double hernia, all left untreated;

g) The Defendant does not have any alternative to his current residence;

h) The Defendant's residence, the only one he owns, is in an isolated place 12 miles by a mountain road from the closest grocery store. His provisions are brought to him by a delivery person once every month;

i) The Defendant's income is of the order of \$500 a month at purchasing power parity, which is understandably barely enough to procure basic food, electricity, internet presence for the company and telephone connectivity, and pay the grocery delivery person. He had to discontinue all insurance coverage. His bank account, with a balance below \$500 at all times, is likely to be seized soon by the French Government, since his insufficient income did not allow him to pay his accrued local taxes, which were due on December 15;

j) Since a lack of sufficient resources as a consequence of the Plaintiff's deeds over the past several years have made the

10/16

Defendant in fact a prisoner in his own house, it would be indeed quite impossible for him to travel to Northwest Florida, which is located 5,000 miles away on another continent. If a solution to the next 2 paragraphs could be found the Defendant would indeed endeavor to take the opportunity to come to Pensacola to publicly face his accusers. If not, the Defendant believes that electronic communication can be extended. It has worked quite efficiently since and before this lawsuit was filed.

2. The foreign Defendant has no visa to enter the United States, since the extant Plaintiff, who is his employer, neglected to, or conspired not to, provide one. The Defendant is not allowed by U.S. authorities to enter the United States for purposes other than tourism or limited business, which evidently does not apply to this Court case. The Defendant will not risk ten years at least of deportation for wrongfully entering the United States under false pretenses.
3. However, extant Plaintiff's company By-laws stipulate expressly in their Article XI that the corporation shall hold harmless and indemnify the Defendant, as a Director or Officer of the corporation, against expenses including attorney's fees and costs of investigation, and

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 12 of 50

that all expenses shall be promptly advanced or reimbursed by the Corporation. The Plaintiffs have not acknowledged the Defendant's numerous requests regarding the provisions of Article XI of the By-laws.

In view of the reality of his financial destitution, it would be ironic in other circumstances to read that the Defendant is however accused absurdly of having stolen millions from the Plaintiffs, without a shred of evidence or any explanation given by the Plaintiffs whatsoever about the manner in which the millions would have been transferred between countries, exchanged for other currencies, and then spent. The Directors who brought suit on behalf of the Plaintiffs have been intimately aware since 2013 of the Defendant's dire financial situation, for which the Defendant maintains his accusers bear a heavy responsibility.

D. Legal issues which in the Defendant's opinion are urgent and must be addressed in priority

The Plaintiffs never addressed constructively the several urgent issues which the Defendant believes must precede any further action, among them:

12/16

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 13 of 50

1. The more than probable lack of legal existence for one of the two Plaintiffs;
2. The jurisdiction of the United States Court in a case brought by an inexistent foreign Plaintiff with exclusively overseas operations suing in U.S. Court a foreign national residing overseas;
3. The Statute of Limitations which have been broadly exceeded, since the events to which the Plaintiffs' accusations of theft relate happened more than 5 years before their complaint was filed, while the Chairman of the Board of extant Plaintiff, who initiated the lawsuit, was clearly informed of said events more than 5 years before the complaint was filed ²;
4. The conflict of interest for the Plaintiffs' Attorney, who, in a case brought by the existing company against a Shareholder and Director thereof, arbitrarily represents in fact two of the Directors against a

² To wit: the amounts which the Plaintiffs accuse the Defendant of having stolen from the extant Plaintiff are exactly equal, to the cent, to the amounts which the Defendant reported to the Plaintiff more than 5 years before the complaint was filed. Plaintiff could not have obtained these exact figures from anyone but the Defendant and in addition the reports were among the documents sent by the Plaintiff to the Defendant during discovery, which shows that the Plaintiffs were and are in possession of said detailed reports.

third one. The Defendant believes that although it would have been probably understandable from a legal standpoint for two Directors, as Shareholders, to sue a third Director in a Court of Law according to well defined procedures, their suing in the name of a company which is owned nearly by half by the Defendant, who is the largest shareholder, a Director and the President, cannot but create a definite conflict of interest, since the Defendant is also as much a Plaintiff in this case as the two Directors who caused the lawsuit, and the extant Plaintiff is required by its By-laws to procure legal representation and defense for the Defendant;

5. The obligation for the Plaintiffs, as per the By-laws of the extant company, to provide legal representation for the Defendant, who is a Director and an Officer of the company. The Plaintiffs have so far ignored the Defendant's several requests, while they expend on this absurd lawsuit the funds they owe the Defendant for salaries unpaid since 2013. Also, the Defendant has demanded to be held harmless regarding the expenditure of legal costs, since he owns nearly half the company, but his demands have remained ignored by the Plaintiffs.

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 15 of 50

The Defendant has sought support from more than twenty attorneys in Florida, but hasn't been able to retain any, since the few who responded demanded an hourly fee equal to almost as much as his monthly income, with a retainer amounting to between 5 and 10 years of personal income. As a consequence, the Defendant still has no counsel to help him conduct his case in a professional manner, and, in particular, assist him, wherever applicable, in filing the legitimate motions to dismiss the Plaintiffs' absurd accusations.

For the reasons expounded above, the Defendant, Marc Moszkowski, respectfully requests that the Court deny Plaintiff's Motion to Compel.

Respectfully submitted to the Court on December 30th, 2018, by

Marc M. Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Phone: +1 (850) 316 8462

Le Verdos, 83300 Châteaudouble, France

A handwritten signature in black ink, reading "M. Moszkowski". The signature is written in a cursive, flowing style.

15/16

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1 (F)

I certify that this document contains 2,647 words, not including this word-count statement, the case style, the signature block and the certificate of service, and therefore is within the 8,000 word limit.

M. Moszkowski

CERTIFICATE OF SERVICE

I hereby certify that, on this Sunday, 30th day of December, 2018, I have posted a copy of this document via the Court's E-filing system, 13 days after I was notified of the Motion to Compel.

M. Moszkowski

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3: 18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.



DEFENDANT'S COMMENTS ON
PLAINTIFF'S RULE 26(a)(1) INITIAL DISCLOSURES

For the sake of authenticity and business prudence, the Defendant feels compelled to comment hereafter on some of the utterly unreasonable statements made by the Attorney for the Plaintiffs in his Initial Disclosures, which the Defendant received by mail on October 25th, 2018. Some of the statements made by the Plaintiffs are clearly untruthful, while others have the potential to further destroy the future of the company, DeepGulf, Inc., which has been already significantly battered by the reckless and absurd actions of the initiators of this legal action.

Plaintiffs' statement:

COMES NOW the Plaintiff, Deepgulf, Inc. and Toke Oil and Gas, S.A., by and through its undersigned counsel, pursuant to Rule 26(a)(1), Fed. R. Civ. P., and submits its initial disclosures:

Defendant's comments: the Defendant observes again (a) unacceptable spelling errors on the part of the counsel for the Plaintiffs throughout the document, (b) the wrong Magistrate Judge initials appended again to the case number despite the 09/19/2018 Order (24) issued by the Chief Judge, and (c) several serious errors in the body of this document, the kind of which the Plaintiffs have referred to in the past as "*Scrivener's errors*", but which the Defendant deems to be either disrespectful of the solemnity of a lawsuit, or an indication of the carelessness or even recklessness of the Attorney for the Plaintiffs and of this frivolous case, or at least an indication of a lack of elementary respect for the Defendant.

Plaintiffs' statement:

I. Individual likely to have discoverable information Plaintiffs may use to support its claims

1. Rustin Howard,
 - a. (850) 377 1856
 - b. 431 East Zaragoza St., Pensacola, FL 32502

c. Chairman of the Board, DeepGulf, Inc.

2. Marc Moszkowski,

a. Defendant (current address or phone number unknown)

Defendant's comments: the Defendant is at a loss to understand Plaintiffs' statement that his "*current address or phone number [are] unknown*", since (a) the Defendant has clearly disclosed both his address and phone number in all his correspondence, (b) he has acknowledged receiving mail from the Plaintiffs, and (c) he responded to Plaintiffs' attorney's phone call. The Defendant does not know whether or not such a scandalous and mendacious statement is a procedural antic on the part of the Plaintiffs.

Plaintiffs' statement:

3. Bill Lott,

- a. (251)583-3150 or (251)433-1621
- b. wblottjr@gmail.com
- c. 26588 Rolling Ridge Road, Robertsedale, AL 36656
- d. Participated in many DeepGulf management and board meetings
- e. Member of Board of Directors
- f. Close friend of Defendant

Defendant's comments: the Defendant notes here the statement made by the Plaintiffs that Bill Lott is a member of the Board of Directors. The Defendant hereby demands from the Plaintiffs a confirmation that Mr. Lott is in effect still a Director of the company, since the Defendant was under the impression that Mr. Howard had caused Mr. Lott to leave the Board of Directors, in order for Mr. Howard to place his close friend Thomas Johnson in the Board seat vacated by Mr. Lott, thus switching the majority of the Board to his own personal advantage.

Plaintiffs' statement:

4. Rodney Lewis,
 - a. (041) 266-1346 or (029) 979-1009 (Australia)
 - b. rodlew@ozemail.com.au
 - c. 2 Lucinda Place, Mona Vale NSW, NSW 2103, Australia
 - d. DeepGulf international legal counsel
 - e. Personal knowledge of DeepGulf and Defendants activities in East Timor, Australia, Indonesia
 - f. In possession of paper and digital documents
5. Arthur Moszkowski,
 - a. +33662785335 (France) or (850) 293-8757 when in the US
 - b. snowtur@hotmail.fr
 - c. Chalet Le Belvedere, Le Crey, 73350 Champagny-en-Vanoise, France
 - d. Adult son of Defendant

- e. Received money from Defendant and money for the benefit of Defendant, possible co-conspirator

Defendant's comments: the Defendant is at a loss to grasp how his son could have possibly avoided for 33 years to ever receive any money from his father, or occasionally for the benefit of his father, and how such an unreasonable statement made by the Plaintiffs could appear in the very paragraph which quite nauseatingly accuses him of being a "*possible co-conspirator*", an accusation that the Defendant notes is again devoid of even a shred of evidence, as all other accusations in the Plaintiffs' complaint. For the record, and as a revealing example of his son's character, the Defendant vigorously reminds the Plaintiffs that his son, for nearly three weeks, was the only individual to help the Defendant, at the risk of his life, in the salvage of a survey ship that was stranded, with a large crew on board, on a dangerous coral reef beaten by a ten foot southeast monsoon surf on the south shores of East Timor. Arthur Moszkowski received no financial compensation whatsoever for his dangerous, strenuous, and repeated efforts, while DeepGulf, Inc.'s Chairman of the Board Rus Howard was enjoying a comfortable salary for staying home, and idle, in Pensacola.

Plaintiffs' statement:

6. Vincente Ximenes,
- a. 011 67077250374 (East Timor)
 - b. vicente_ximenes@yahoo.com.au
 - c. Last known Address: Hotel Dili, Suite 1, 56 rua dos Direitos Humanos, Dili, Timor Leste.
 - d. Founder, former owner Toke Oil and Gas SA,
 - e. DeepGulf representative in East Timor and Indonesia
 - f. Personal knowledge of DeepGulf and Defendants activities in East Timor, Australia, Indonesia
 - g. In possession of paper and digital documents

Defendant's comments: Mr. Ximenes, whose first name is misspelt, is here rightfully described as the "*founder, former owner of Toke Oil and Gas SA.*", which strongly invalidates the Plaintiffs' absurd claim that the Defendant stole from DeepGulf, Inc. and for himself Mr. Ximenes' salaries. Mr. Ximenes was also a Director and an active manager of Toke Oil and Gas S.A..

Plaintiffs' statement:

7. Gino Favaro,
- a. unknown
 - b. ginofavaro.57@gmail.com
 - c. Hotel Dili, Suite 1, 56 rua dos Direitos Humanos, Dili, Timor Leste.
 - d. Founder, former owner Toke Oil and Gas SA, former Director Toke Oil and Gas SA

e. Personal knowledge of DeepGulf and Defendants activities in East Timor

Defendant's comments: Mr. Favaro is here rightfully described as the "*founder, former owner of Toke Oil and Gas SA. , former Director Toke Oil and Gas SA*", which strongly invalidates the Plaintiffs' absurd claim that the Defendant stole from DeepGulf, Inc. and for himself Mr. Favaro's salaries. Mr. Favaro was also an active manager of Toke Oil and Gas S.A..

Plaintiffs' statement:

8. Alfredo Pires,
 - a. Phone Unknown
 - b. Secretary of State for Natural Resources in Timor-Leste
 - c. DeepGulf provided services to East Timor at the behest of Mr. Pires
 - d. Pires has personal knowledge about DeepGulf projects and contracts in East Timor as well as Defendant's activities in East Timor.

Defendant's comments: His Excellency, Mr. Alfredo Pires, has been the Minister of Petroleum and Mineral Resources of the Democratic Republic of Timor-Leste in the last two governments, and he is currently awaiting confirmation as Minister of Petroleum and Minerals in the new Cabinet.

Referring to Mr. Pires by his surname only should be avoided, for reasons of diplomatic protocol. Mr. Pires has certainly some knowledge about Toke Oil and Gas S.A.'s projects, but probably not much awareness of DeepGulf, Inc. No services were provided by DeepGulf, Inc. to East Timor at the behest of Mr. Pires.

Additionally, the Defendant emphasizes that he continues to pursue complex business in East Timor, where the relationship with the above named high ranking Cabinet Member has much improved lately. It would be further destructive to the company to involve said high ranking Cabinet Member in the internal DeepGulf feud. The Defendant observes that the responsibility for involving Mr. Pires would be entirely the Plaintiffs', but he stresses that doing so would be not only outright useless, since the Plaintiffs' claims are imaginary and frivolous, but also seriously detrimental to the future of the company, the activities of which have already been utterly damaged by the Plaintiffs' reckless and uneducated actions.

Plaintiffs' statement:

9. Francisco Monteiro,
 - a. Address-Phone Unknown
 - b. President, CEO Timor Gap, Conducts oil and gas business on behalf of the Timor-Leste Government.
 - c. Has personal knowledge about DeepGulf projects and contracts in East Timor as well as Defendant's activities in East Timor.

Defendant's comments: Mr. Monteiro has certainly some knowledge about Toke Oil and Gas S.A.'s business, but probably not much awareness of DeepGulf, Inc.

Additionally, the Defendant emphasizes that he continues to pursue complex business in East Timor, where the relationship with the above named high ranking official has much improved lately. It would be further destructive to the company to involve said high ranking official in the internal DeepGulf feud. The Defendant observes that the responsibility for involving Mr. Monteiro would be entirely the Plaintiffs', but he stresses that doing so would be not only outright useless, since the Plaintiffs' claims are imaginary and frivolous, but also seriously detrimental to the future of the company, the activities of which have already been utterly damaged by the Plaintiffs' reckless and uneducated actions.

There is also the delicate matter of the past attempts by the above named high ranking Timorese official to obtain for himself illegitimate pecuniary favors from the Timorese company's Directors, which attempts the Defendant vigorously dismissed in 2010. The dismissal led to the deterioration of the heretofore excellent relationship the company in Timor had until then enjoyed. Should the gentleman be involved, the issue, which the Defendant has reported elsewhere on several occasions, would obviously have to be addressed in detail, together with the then position on the matter of DeepGulf, Inc.'s Chairman of the Board, Rus Howard.

Plaintiffs' statement:

10. I.J. Tark,
 - a. 011 82-10-2088-0694 or 011 82-51-200-0101 (Korea)
 - b. 497 Shinpyeong-dong, Saha-gu, Busan, Korea
 - c. Former President NK,
 - d. Has knowledge of DG projects conducted in Timor, and attempted to help Defendant raise capital in Korea.

Defendant's comments: Mr. Tark attempted to help the Defendant raise capital for the benefit of DeepGulf, Inc. through a potential South Korean subsidiary.

The beneficiary of such potential capital must be clearly named in any mention of such attempt to raise capital. The attempt failed because of the continued inaction and probable incompetence of DeepGulf, Inc.'s Chairman of the Board Rus Howard, who was the acting Chief Financial Officer.

Plaintiffs' statement:

11. Bryan Lastrapes,
 - a. (832) 312-5555 or 713.343.6431
 - b. 333 Clay Street, Suite 3750, Houston, TX 77002
 - c. VP Moelis, Investment Bank
 - d. Has knowledge of representations made by defendant while fundraising.

Defendant's comments: Mr. Lastrapes is a Managing Director (not a VP) of Moelis & Company. No funds were ever raised from Moelis & Company or from Mr. Lastrapes. All representations made to Mr. Lastrapes by the Defendant were (a) made in good faith, (b) were correct, to the best of the Defendant's understanding, and (c) were witnessed in person by DeepGulf, Inc.'s Chairman of the Board Rus Howard, who approved them, had reviewed each and every presentation to Moelis & Company beforehand and, in addition,

was copied of any correspondence with Mr. Lastrapes.

Plaintiffs' statement:

12. Aaron Rosen,
 - a. (585) 330-4009
 - b. 1641 East Avenue, Rochester, NY 14610
 - c. DeepGulf Shareholder, Knowledge or representation made to him by DeepGulf while fundraising
13. Thomas Johnson,
 - a. (850) 712-9095
 - b. 3520 Hopestill Rd., Pensacola, FL 32503
 - c. DeepGulf Shareholder, Knowledge or representation made to him by DeepGulf while fundraising
 - d. New member of, and currently serves on DG Board

Defendant's comments: Since Bill Lott is described above by the Plaintiffs as a "*close friend of Defendant*", Mr. Johnson must be described in this paragraph as a close friend of Plaintiff DeepGulf, Inc.'s Chairman of the Board Rus Howard.

Plaintiffs' statement:

14. Thomas McMillan,
 - a. (251) 867-5413
 - b. P. O. Box 809, Brewton, AL 36427
 - c. Former member DeepGulf Board of Directors
15. Edith Johnson,
 - a. (850) 380-3343
 - b. 3520 Hopestill Rd., Pensacola, FL 32503
 - c. DeepGulf Shareholder, Knowledge or representation made to her by DeepGulf while fundraising

Defendant's comments: Since Bill Lott is described above by the Plaintiffs as a "*close friend of Defendant*", Mrs. Johnson must be described in this paragraph as a close friend of Plaintiff DeepGulf, Inc.'s Chairman of the Board Rus Howard.

Plaintiffs' statement:

II. Documents in Defendant's possession, custody, or control that it may use to support its claims

See attached documents.

Defendant's comments: the Defendant is at a loss to understand the rationale for the Plaintiffs' Attorney to send by air mail to the Defendant documents in Plaintiffs' possession which he describes in this paragraph as being in Defendant's possession, custody, or control, and which he seemingly describes as the documents allowed by the Plaintiffs for the Defendant to use to support his claims.

The Defendant reads in Rule 26 (a)(1)(A)(ii) that "*a party must, without awaiting a discovery request, provide to the other parties: a copy—or a description by category and location—of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses*".

The Defendant believes that paragraph II of the Plaintiffs' Initial Disclosures is wrongly and erroneously titled, although the error is consistent with a pattern of repeated mistakes and outright fabrications that appears to be customary on the part of the Plaintiffs.

Plaintiffs' statement:

III. Computation of damages claimed by Defendant

Defendant's comments: the Defendant is a loss to understand the rationale for the Plaintiffs' Attorney to compute the damages claimed by the Plaintiffs in a paragraph titled "*Computation of damages claimed by Defendant*".

The Defendant reads in Rule 26 (a)(1)(A)(iii) that " *a party must, without awaiting a discovery request, provide to the other parties: a computation of each category of damages claimed by the disclosing party*".

The Defendant believes that paragraph III of the Plaintiffs' Initial Disclosures is wrongly and erroneously titled, although the error is consistent with a pattern of repeated mistakes and outright fabrications that appears to be customary on the part of the Plaintiffs.

Plaintiffs' statement:

Damages for Plaintiffs claims for conversion and civil theft in Count III and V are based upon \$345,000 that Defendant stole and / or converted to his own use. In addition, Section 772.11 provides treble damages and attorneys fees for civil theft claims.

Damages for Plaintiffs claims for conversion and civil theft in Count IV and VI are based upon \$959,764.22 that Defendant stole and / or converted to his

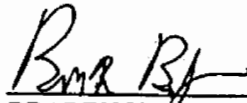
own use. In addition, Section 772.11 provides treble damages and attorneys fees for civil theft claims.

Damage for Counts VII are unknown at this time and Plaintiffs will update the disclosure when those damages are determined.

Defendant's comments: the Plaintiffs' utterly absurd and fabricated accusations are unsupported by even a shred of evidence.

IV. Applicable insurance agreements

Not applicable.

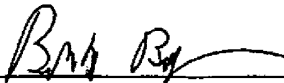


BRADEN K. BALL, JR.
Florida Bar No. 89000
LITVAK BEASLEY WILSON & BALL, LLP
226 East Government Street
Pensacola, Florida 32502
Telephone: (850) 432-9818
Facsimile: (850) 432-9830
Attorneys for Plaintiffs
Primary E-mail: braden@lawpensacola.com
Secondary E-mail: mandrews@lawpensacola.com

Plaintiffs' statement:

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 15th day of October, 2018 a copy of the foregoing has been furnished to the Defendant, Marc M. Moszkowski, m.moszkowski@deepgulf.net, Le Verdos, 83300 Châteaudouble, France, via Priority Mail International.


BRADEN K. BALL, JR.

Defendant's comments: the Defendant observes that although the Plaintiffs have declared mendaciously that the Defendant's address was unknown to them, they had in effect good knowledge of where to address their Initial Disclosures; furthermore, the Defendant cannot fail to observe that the grammar, and in particular the syntax, of the above Certificate of Service, suggest carelessness on the part of the Plaintiffs, which he thinks is characteristic of the Plaintiffs and is certainly not to be tolerated from a professional Attorney at Law admitted to the Florida Bar and practicing in United States District Court.

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 34 of 50

A handwritten signature in black ink, reading "M. Moszkowski". The signature is written in a cursive, flowing style.

Marc M. Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Phone: +1 (850) 316 8462

Le Verdos, 83300 Châteaudouble,
France

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 35 of 50

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have, on this Monday, 29th day of October, 2018, before 6:00 AM, emailed a copy of this document to the Attorney for the Plaintiffs, Braden K. Ball, Jr., one working day after I received his own Initial Disclosures.

M. Moszkowski

19/19

IN THE UNITED STATES COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs'

v.

CASE NO. 3: 18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.



MARC MOSZKOWSKI'S FIRST REQUEST FOR PRODUCTION OF
DOCUMENTS

Marc Moszkowski, Pro-Se, pursuant to Federal Rules of Civil Procedure, requests DeepGulf, Inc. and Toke Oil and Gas S.A., if the latter still exists, to produce the documents described more fully below, within the time and in the manner required by the Federal Rules of Civil Procedure, and permit Defendant to examine, review, and inspect electronically copies of all the documents requested which are in DeepGulf, Inc.'s possession, custody, or control, or are in the possession, custody, or control of DeepGulf, Inc.'s agents, employees, servants or representatives and, unless privileged, its attorneys.

DEFINITIONS

As used herein, the term "document" includes, without limitation, the following items, whether printed or recorded or reproduced by any other mechanical process, or written or produced by hand: contracts; agreements; communications; correspondence; telegrams; telex; memoranda; conversations; summaries, notes, memorandum or records of telephone conversations; summaries or records of personal conversations or interviews; statements of witnesses; diaries; reports; receipts; notebooks' note charts; books; ledgers; lists; summaries or records of meeting of conferences; summaries, studies or reports of investigations or negotiations; technical studies or comments appearing on any document; voice recording tapes; microfilm or microfiche; photographs; data processing cards or disks; video recording tapes; calendars; graphs; charts; computer printouts and other computer generated reports; and includes all drafts of documents and copies of such documents containing marginal notes or variations of any of the foregoing, now in your custody or control and all other writings.

As used herein, the terms "you", or "yours" shall refer to DeepGulf, Inc.

SCOPE OF PRODUCTION

If any documents are withheld under claim of privilege, furnish a list identifying each document for which the privilege is claimed, together with the following information:

1. a brief description of the nature and subject matter;
2. the date;
3. the name and title of the author(s);
4. the name and title of the person(s) to whom the document was addressed;
5. the name and title of the person(s) to whom the document was sent;
6. the number of pages;
7. the paragraph to which the document is otherwise responsive; and
8. the nature of the claimed privilege.

DOCUMENTS TO BE PRODUCED

1. Affidavit establishing, if applicable, that DeepGulf, Inc. is not in possession of the correspondence between Rustin Howard and Marc Moszkowski since 2004 and that all or part of it has been lost by Plaintiff's Rustin Howard and/or his secretaries;
2. All accounting books and records for Plaintiff DeepGulf, Inc. since the founding of the company until this day;

3/15

3. All accounting records relative to Rustin Howard's expenditure of DeepGulf, Inc.'s monies;
4. Detailed report of all monies received by DeepGulf, Inc. from Toke Oil and Gas S.A. and other sources;
5. Detailed report of all monies paid to Rustin Howard, plus incidentals and benefits;
6. Detailed report of all monies paid to Rustin Howard's secretaries and assistants, plus incidentals and benefits;
7. Detailed report of all monies spent on office leases;
8. Evidence, if any, of Marc Moszkowski's authorization for the payments relative to the three points above. Marc Moszkowski is the President, and as such he had the rights powers and authorities reserved for the CEO as per Section 9 of Article VII of company Bylaws, since Marc Moszkowski understands now that according to Mr. Rustin Howard no CEO was designated by the board;
9. Evidence, if any, that Rustin Howard had been authorized by the Board of Directors to act as de-facto Chief Financial Officer;
10. Evidence, if any, that Marc Moszkowski, as the President and (Chief) Executive Officer of DeepGulf, Inc. had access to the company's bank accounts;

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 40 of 50

11. Evidence, if any, of any and all banking operations done by Marc Moszkowski on or from DeepGulf, Inc.'s bank accounts;
12. Evidence, if any, that Rustin Howard actually disbursed to the benefit of DeepGulf, Inc. the amount of \$5,000 which was to be his only founding contribution to the company;
13. Evidence, if any, that Marc Moszkowski did not spend his personal funds to support the development of DeepGulf, Inc. between 2005 and 2008;
14. Affidavit that Marc Moszkowski was not the CEO, as claimed by Rustin Howard despite his verbal statements to the contrary;
15. Affidavit regarding who is the Vice President, according to Article VII of company by-laws;
16. Affidavit regarding who was and is the CEO, according to Article VII of company by-laws;
17. Affidavit regarding the validity of the title given lately to Marc Moszkowski by Rustin Howard at the end of 2017 ("*President and the Executive Officer*").
A search on Google could not confirm the existence of such a title in the United States;
18. Affidavit regarding why Article VII, Section 9, of DeepGulf, Inc. By-laws should not apply to Marc Moszkowski. See Article VII, Section 9, *The President: "The President shall have the rights powers and authorities as*

5/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 41 of 50

designated by the Board. If no CEO is designated by the board the President shall have all the rights powers and authorities reserved for the CEO unless otherwise authorized by the board.";

19.Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski stole intellectual property from the company, since Marc Moszkowski is the author of said intellectual property and currently works for the company, albeit without a salary since 2013, and is a Director, and the President;

20.Evidence, if any, to support DeepGulf, Inc.'s claim that the salary received by Marc Moszkowski from third party Toke Oil and Gas S.A. was stolen from DeepGulf, Inc.;

21.Evidence, if any, to support DeepGulf, Inc.'s claim that the salaries received by the other two founders and Directors of Toke Oil and Gas S.A. from third party Toke Oil and Gas S.A. were stolen by Marc Moszkowski from DeepGulf, Inc.;

22.Evidence, if any, to support DeepGulf, Inc.'s claim that the salaries received by the other two founders and Directors of Toke Oil and Gas S.A. from third party Toke Oil and Gas S.A. were actually paid to Marc Moszkowski;

23.Evidence, if any, as to the whereabouts of the monies DeepGulf, Inc. is accusing Marc Moszkowski of having stolen;

6/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 42 of 50

- 24.Evidence, if any, as to the manner in which Marc Moszkowski spent the monies DeepGulf, Inc. is accusing Marc Moszkowski of having stolen;
- 25.Evidence, if any, to support DeepGulf, Inc.'s claim that the salaries paid by Toke Oil and Gas S.A. to its Directors and Officers should not have been paid to said Directors and Officers;
- 26.Evidence, if any, contracts, and documentation, to support DeepGulf, Inc.'s claim that the salaries paid by Toke Oil and Gas S.A. to its Directors and Officers should have been paid instead to DeepGulf, Inc.;
- 27.Evidence, if any, to support Rustin Howard's claim that it was illegal for Director Bill Lott to communicate with Marc Moszkowski or to try to conciliate the dispute between Marc Moszkowski and Rustin Howard;
- 28.Evidence, if any, in support of the legality of the process by which Rustin Howard obtained from some shareholders proxies to change the composition of the Board of Directors to his own advantage and to sue Marc Moszkowski, who did not have access to all the shareholders;
- 29.Evidence, if any, to support Rustin Howard's claim that it was illegal for Marc Moszkowski to write to some of the shareholders in order to keep them informed of Rustin Howard's deeds and accusations;

7/15

30. Evidence, if any, that Rustin Howard was entitled to withhold nearly half the shareholders' contact addresses from Marc Moszkowski, and to consistently ignore Marc Moszkowski's demands for said contact addresses;
31. Statement as to the identity of the persons who retained the Attorney for the Plaintiffs;
32. As the principal owner of the company, its President, and one of its three Directors, the Defendant hereby demands to be provided with a copy of the agreement between DeepGulf, Inc. and Toke Oil and Gas S.A. and the attorney for the DeepGulf, Inc., including about pecuniary arrangements;
33. Explanations as to why DeepGulf, Inc. has still not provided representation to its President and Director Marc Moszkowski despite Article XI of company's bylaws;
34. Evidence, if any, that there is no conflict of interest whatsoever for DeepGulf, Inc.'s Attorney, whose client's principals are DeepGulf, Inc.'s Directors, including the Defendant Director. Such conflict of interest is incompatible with an impartial and just resolution of this case;
35. Evidence, if any, that the Defendant is and will be held harmless by DeepGulf, Inc. with regard to the current legal representation and other legal costs for DeepGulf, Inc.;

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 44 of 50

36. Evidence, if any, to support DeepGulf, Inc.'s claim that DeepGulf did not owe Marc Moszkowski a salary despite the terms of his visa which stipulated said salary explicitly;
37. Evidence, if any, that the Court has jurisdiction over Plaintiff Toke Oil and Gas S.A.'s complaint. Plaintiff Toke Oil and Gas S.A., whose identity has finally been confirmed by the Plaintiffs as that of a foreign corporation (although its address is described in the summons as being the private domicile of Plaintiff DeepGulf, Inc.'s Chairman of the Board in Pensacola, Florida), is extinct as far as the Defendant is aware, operated exclusively in a foreign country, but is suing the Defendant, who is a foreign national residing in a foreign country, in a United States Court;
38. Evidence, if any, establishing that Marc Moszkowski should have requested permission from DeepGulf, Inc.'s Board of Directors before accepting compensation from Toke Oil and Gas S.A., or that he should have requested permission from Toke Oil and Gas S.A.'s Board of Directors before accepting compensation from DeepGulf, Inc.;
39. Affidavit regarding which decision the Board of Directors would have reached if permission had been requested for compensation to be paid to Marc Moszkowski by Toke Oil and Gas S.A.;

9/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 45 of 50

40. Evidence, if any, establishing that Rustin Howard was granted permission from DeepGulf, Inc.'s Board of Directors before accepting compensation from DeepGulf, Inc.;
41. Affidavit regarding which decision the Board of Directors would have reached if permission had been requested for compensation to be paid to Rustin Howard by DeepGulf, Inc.;
42. Evidence, if any, of the minutes of meeting of the full Board of Directors, including Director Marc Moszkowski, which resulted in this lawsuit;
43. Evidence, if any, that Marc Moszkowski was requested to assist in due time with sufficient notice and during working hours to said Board of Directors meeting in the usual manner in which communication had been established within the company since at least 2005;
44. Evidence, if any, that Marc Moszkowski was party to and voted in the Board of Directors meeting during which the decision was made to bring suit against him;
45. Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski was ever contracted by Toke Oil and Gas S.A. for consulting activities;
46. Evidence, if any, that Marc Moszkowski should not have received a salary from Toke Oil and Gas S.A. while he was Toke's President Director General, Project Manager, support boat operator, survey ship pilot, cartographer, data

10/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 46 of 50

analyst, senior scientist, senior engineer, website administrator, communication director, ship salvage manager, contract negotiator, head of the legal department, logistics manager, etc., several of the above activities occurring offshore;

47.Evidence, if any, that Rustin Howard never received Toke Oil and Gas S.A. financial documents and reports more than 5 years before this lawsuit was filed, and that he did not acknowledge receiving them;

48.Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski did not disclose the salaries paid by Toke Oil and Gas S.A. to its Directors more than 5 years before this lawsuit was filed;

49.Evidence, if any, existing in the agreements relative to the transfer of stock between Toke Oil and Gas S.A. and DeepGulf, Inc., regarding the availability and production of existing and past company information, reports and records to DeepGulf, Inc.;

50.Copies of all correspondence between DeepGulf, Inc., or its Directors, and Mr. Frank White, a Florida State Representative running at the time for the office of Florida Attorney General who had no authorized business with DeepGulf, Inc.;

51.Evidence, if any, that Mr. Frank White had authorized business with DeepGulf, Inc.,

11/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 47 of 50

52. Copy of all correspondence regarding DeepGulf, Inc.'s business or activities, which has not been copied to Marc Moszkowski, who was and is the company's President and one of its three Directors;
53. Evidence, if any, that Plaintiff DeepGulf, Inc. had no obligation or duty to provide a visa for Marc Moszkowski, whereas five visa applications had been made, all by Rustin Howard, four of which visas having been picked up in Paris, Jakarta, Hong Kong, and Paris again;
54. Evidence, if any, to support DeepGulf, Inc.'s claim that all of Marc Moszkowski's private revenue had to be paid to DeepGulf, Inc., especially as a foreign citizen working in a foreign country for a foreign employer, while DeepGulf, Inc. did not pay him a salary;
55. Evidence, if any, that it was ethical and legal for Rustin Howard to connive with his friend and business associate Dave Rumsey, with the design to substitute a private loan from a third party at an usurious interest rate for a duly owed company salary;
56. Evidence, if any, that it was ethical and legal for Rustin Howard to connive with Dave Rumsey to sue Marc Moszkowski in French Court for the reimbursement of a loan in substitution of a duly owed salary, said loan never having been paid by Dave Rumsey to Marc Moszkowski;

12/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 48 of 50

57.Evidence, if any, to support the fact that while Marc Moszkowski was employed in Singapore and West Africa by a third party company, part of the time offshore, and while he had ascribed to DeepGulf, Inc. all the \$100,000 revenue from his clients, he should not have received any salary whatsoever from DeepGulf, Inc. for discharging the duties that were demanded from him by his clients;

58.Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski "*absconded*" and stole intellectual property, since he left the country only because the company did not provide him with the required visa to stay, and he is still the company's President and one of its three Directors;

59.Evidence, if any, to support DeepGulf, Inc.'s claim that Marc Moszkowski is using any of company's intellectual property for his personal gain;

60.Evidence, if any, of the continued and uninterrupted existence of Toke Oil and Gas S.A. since 2008, as delivered by the relevant East Timorese governmental authority;

61.Evidence, if any, that Toke Oil and Gas S.A. is a full subsidiary of DeepGulf, Inc. ;

62.If company Toke Oil and Gas S.A. still exists in East Timor as a continued and uninterrupted corporation since 2008, evidence, if any, of a certification

13/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 49 of 50

of the composition of the Board of Directors, as delivered by the relevant East Timorese governmental authority;

63.Evidence, if any, that DeepGulf, Inc. completed the acquisition of Toke Oil and Gas S.A., and that the full payment was paid by DeepGulf, Inc. to Vicente Ximenes for the transfer of his shares to DeepGulf, Inc.;

64.Evidence of the origin of the funds that supported the company's activities between mid-2005 and early 2008, if not from Marc Moszkowski, during the period when Rustin Howard did not raise capital and Marc Moszkowski received no salary, although the company operated, with commercial promotion paid for and daily work done by Marc Moszkowski, who had to support himself and the company and pay for all travel expenses.



Marc M. Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Phone: +1 (850) 316 8462
Le Verdos, 83300 Châteaudouble,
France

14/15

Case 3:18-cv-01466-MCR-MJF Document 33 Filed 12/30/18 Page 50 of 50

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that, on this Wednesday, 28th day of November, 2018, I have emailed a copy of this document to the Attorney for the Plaintiffs, Braden K. Ball, Jr.

M. Moszkowski

15/15